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File No.: EXP202212911

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on November 24, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) the respondent has two cameras on the facade of their home and a surveillance camera on their terrace indicating that this camera is clearly oriented towards my home, without having authorization for this” – page no. 1 --.

Images of the location of the cameras are provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on December 1, 2022, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly acknowledged as evidenced by the receipt in the file.

No response has been received regarding the facts, nor is there any record of a change in the described situation as of the date.

THIRD: On February 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 13, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement on April 12, 2023, in which, in summary, they stated the following:

“I do not agree with the letters received... the Police told me not to orient them towards the road or people. (...) I am scared, I live alone and I have them for security reasons, I have proof of everything and they are really well placed (...)

SIXTH: On April 24, 2023, a was issued, proposing the filing of the proceedings as it has not been established that the facts presented constitute an administrative infringement in the matter at hand, being duly notified in time and form as evidenced by the information system of this agency.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. On November 24, 2022, a complaint was received by this Agency, which states the following: “(…) the respondent has two cameras on the facade of their home and a surveillance camera on their terrace indicating that this camera is clearly oriented towards my home, without having authorization for this” – page no. 1 --.

Second: B.B.B. is identified as the main responsible party, who does not deny being responsible for the installation but states that the cameras do not violate current legislation.

Third: There is a presence of an informative sign on the facade of the home indicating it is a

“video-surveilled area,” informing about rights and the data controller.

Fourth: There is no record of the impact on the private area of third parties or that the cameras capture public areas according to the screenshot provided by the respondent, limiting the capture to the facade area of their private home.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, we proceed to examine the complaint dated 24/11/22, through which the presence of a camera that may be misaligned towards their private property is reported, feeling intimidated by it without justified cause. Documentary evidence is provided (Annex I) confirming the presence of various cameras, deducing that they are close to their property, although no situational plan is provided to specify which homes are affected. The content of Article 5.1 letter c) of the GDPR is presumed to be affected, which states: "Personal data shall be:

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

It should be noted that individuals are responsible for ensuring that the systems installed comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

The installed cameras must be oriented towards the private property, avoiding intimidation of nearby homes and/or public space with such devices.

Under no circumstances may the cameras record images of public roads or neighboring homes (except for access to the property), as this would fall under the jurisdiction of the State Security Forces and Corps.

The installed cameras must be appropriate for the intended purpose, that is, protection of the main access to the residential area, avoiding affecting the privacy of neighbors or nearby homes that are impacted by the recording of images.

III

On 12/04/23, a written response from the respondent to the Initiation Agreement of this agency was received, denying the accusations made against them, stating that they are oriented towards their private residence, arguing various disagreements with the complaining owner.

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They provide a photograph that proves the presence of an informative sign indicating that it is a

video-surveillance area, which is in a visible location.

From the images provided, it can be inferred that they are oriented towards the access door of their home, with no capture of private space of third parties being observed.

It is worth noting that individuals can freely install video surveillance cameras for the purpose of protecting their properties, as long as they take responsibility for them, having an informative sign in a visible area indicating that it is a and does not affect the rights of third parties or excessively capture public space, currently not requiring any type of administrative authorization.

It is emphasized that they must be permanently oriented towards private space, avoiding being directed towards neighboring properties that may feel intimidated by such devices.

IV

The principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: “that the sanction is based on acts or evidentiary means that incriminate the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal.

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCO 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction may be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCO Auto 3-12-81).

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V

In accordance with the above, it can be concluded that the cameras installed are for the purpose of securing the property, that they have an informational sign in a visible area, and that there has been no evidence of illegal capture of areas reserved for third parties and/or any public space. For all these reasons, it is proposed to archive the present procedure as no administrative violation has been established.

The parties are reminded of the significance of the rights at stake, and any other conflict should be resolved in the appropriate judicial and/or police instances, avoiding the instrumentalization of this agency for matters related to neighborhood disputes.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present procedure as it has not been established that the facts presented constitute a violation of the current regulations on data protection.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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